

Court No. - 3

Case :- WRIT - C No. - 21154 of 2022

Petitioner :- Asrar Ahmad Malik

Respondent :- Uttar Pradesh Power Corporation Ltd. And 4 Others

Counsel for Petitioner :- Abrar Ahmad Siddiqui

Counsel for Respondent :- CSC, Krishna Agarawal, Narendra Kumar Tiwari

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Surendra Singh-I, J.

Heard learned counsel for the petitioner, learned standing counsel for the State-respondents and Sri Narendra Kumar Tiwari, learned counsel for the respondent Nos. 2, 3 and 4.

This writ petition has been filed praying for the following relief:

"(I) Issue a writ, order or direction in the nature of certiorari to quash the recovery citation dated 02.04.2022 issued by respondent No. 5.

"(II) Issue a writ order or direction in the nature of mandamus to the respondent No. 4 to decide the representation dated 12.05.2022 and further provide the correct electricity bill to the petitioner."

Sri Narendra Kumar Tiwari, learned counsel for the respondent Nos 2,3 & 4 states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed off** giving liberty to the petitioner to submit his objection under **Para 6.8 of U.P. Electricity Supply Code, 2005** before the respondent No. 4, Executive Engineer, Vidyut Vitran Khand, George Town, District Prayagraj, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No. 4 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 17.8.2022

Brijesh Maurya